Tentative Rulings for June 9, 2026
Department M301

To request oral argument, you must notify Judicial Secretary Kari Gates at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 538 5472

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2402958	GUZMAN VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL DEPOSITION AND PRODUCTION OF DOCUMENTS

Tentative Ruling: Hearing Required

2.

CASE #	CASE NAME	HEARING NAME
CVME2402958	GUZMAN VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL PRODUCTION OF PLAINTIFFS' VEHICLE FOR INSPECTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512904	J. VS CLASSIC COLLISION, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted. Case is stayed pending arbitration.

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co*. (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp*. (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability …. Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Federal and state policy favors arbitration such that "when there is doubt as to the meaning and construction of an agreement for mediation and/or arbitration, that doubt should be resolved in favor of those processes." (*Bono v. David* (2007) 147 Cal. App. 4th 1055, 1062.)

The FAA Applies - There is no real dispute as to whether the FAA applies to the AA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolls v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) **Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA.** (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the AA *expressly* states that it is governed by the FAA. (Dec.Poei ¶ 3, Ex. "L", p. 2, ¶ 4 [p. 18 of 24.]) Thus, the FAA applies to the AA.

Existence of an Arbitration Agreement - Defendants assert that Plaintiff agreed to arbitrate all of his employment-related disputes. The AA states: "By signing my name below and/or by accepting and/or continuing employment with the Company, I agree to pursue any claims I might have against the Company that currently exist or that may arise in the future exclusively through binding arbitration; similarly, the Company agrees to pursue any claims it might have against me that currently exist or that may arise in the future exclusively through binding arbitration." (Dec.Poei ¶ 3, Ex. "L" p. 1, ¶ 1 [p. 17 of 24.]) The AA also provides: "I understand that this agreement requires me to pursue all claims I bring against the Company (and any third-party beneficiaries) through binding arbitration and requires that the Company submit any claims it has against me to binding arbitration (except for those claims specifically excluded by this agreement.)" (*Id.* Ex. "L" p. 1, ¶ 2.) The AA includes "any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future." (*Ibid.*)

"Any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law." (Evid. Code § 1400; *People v. Valdez*, *supra*.)

Here, Plaintiff has electronically signed the AA, which is undisputed. (Dec.Poei ¶ 3, Ex. "L" p. 4 [p. 20 of 24.]) In addition, Robert Jones is the Human Resources Information Systems (HRIS) Manager for Classic, who is responsible for employee processing and onboarding, has access to personnel files and employments, and is the custodian of those records. (Dec.Jones ¶¶ 1-2.) Mr. Jones acknowledges the dates Plaintiff was employed by Classic. (*Id.* ¶¶ 3, 5.) He exchanged emails with Plaintiff to assist him in creating an account and completing the onboarding process. (*Id.* ¶¶ 5-13, Exs. "C" – "I".) He indicates Plaintiff's signed AA went into his employee file with Classic. (*Id.* ¶ 13.) Thus, Mr. Jones has established Plaintiff signed the AA. Plaintiff does not dispute that he signed the AA. Thus, a valid AA exists.

Unconscionability - Plaintiff argues that the AA is both procedurally and substantively unconscionable. It is true that a contract is unenforceable if it is unconscionable. (Civil Code §1670.5.) Under California law, "[i]f the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civil Code § 1670.5(a); see *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) It should be noted that the FAA limits state unconscionability rules that facially discriminate against arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1143.)

"[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 910.) Both elements must be present in some degree in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Armendariz, supra,* 24 Cal.4th at 114.) Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof. (*Sanchez*, *supra,* 61 Cal.4th at 911.)

Plaintiff argues that the AA is procedurally unconscionable. "'Procedural unconscionability' concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It focuses on the factors of oppression or surprise. This element is generally satisfied if the agreement constitutes a contract of adhesion." (*Id*., citing *Nyulassy v. Lockheed Martin Corp*. (2004) 120 Cal.App.4th 1267, 1280-1281.) Adhesion contracts are "standardized contracts drafted by a party of superior bargaining power and presented to the weaker party on a take-it-or-leave-it basis". (*Id*.)

Plaintiff asserts there is procedural unconscionability in the AA because it constitutes a contract of adhesion. He asserts that the AA was presented on a take-it-or-leave it basis as part of the onboarding process, and was a condition of employment. However, this merely raises a low degree of procedural unconscionability. (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 113.) Notably, Plaintiff did not purport to negotiate the terms of the AA nor did he refuse to sign the AA based on the fact that it was adhesive or presented as a condition of employment. Plaintiff has established only a low degree of procedural unconscionability.

Plaintiff also addresses substantive unconscionability, which focuses on the terms of the agreement and whether those terms are so unduly harsh or unreasonably one-sided as to "shock the conscience." (*Marin Storage & Trucking, Inc. v. Benco Contracting & Eng.* (2001) 89 Cal.App.4th 1042, 1055.) It should also be noted that "a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable." (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the AA itself is "extremely ambiguous" because it references the FAA, and procedures of the CAA, which is contradictory. However, these are standard references made in AAs. Plaintiff has not demonstrated how there is any conflict nor how it would render the AA substantively unconscionable. And, Plaintiff cites no authority for this purported ambiguity constituting substantive unconscionability.

Plaintiff also argues that the AA states Plaintiff will have the full benefit of discovery, but Defendants claim Plaintiff is not entitled to full discovery as if he was in a civil forum. Notably, Plaintiff acknowledges that the AA contains language incorporating permissible discovery procedures under the CAA, CCP § 1283.05. Plaintiff asserts that he offered a stipulation containing this language from the AA proposing to allow discovery as expressly set forth in the AA, but that Defendants refused to include the language in the stipulation, which is the reason Plaintiff would not stipulate to arbitration. Defendants clarify that Plaintiff is arguing that Defendants are refusing to comply with their own AA, but in actuality CCP § 1283.05(e) limits discovery in arbitration by requiring leave from the arbitrator to take depositions – "Depositions for discovery shall not be taken unless leave to do so is first granted by the arbitrator or arbitrators." Defendants also point out that the arbitrator is the gatekeeper in arbitration similar to the judge in superior court. (CCP § 1283.05(b).) Moreover, the discovery rule in arbitration applies to both Plaintiff and Defendants. Thus, Plaintiff has not established any substantive unconscionability.

Based on the foregoing, and considering the sliding scale used for claims of unconscionability, Plaintiff has only established a low degree of procedural unconscionability and no substantive unconscionability. As such, unconscionability has not been sufficiently demonstrated to warrant a defense to arbitration.

Plaintiff also argues that Defendants engaged in misconduct by publicly disclosing his surname and personal information including his social security number so, the motion should be denied. Defendants assert that there was no *intention* to make such a disclosure. Rather, the information was *mistakenly* left unredacted in the motion. And, these inadvertent errors have since been corrected. This is not a proper ground to prevent arbitration, as agreed by the parties.

Finally, Plaintiff does not oppose Defendants' contention that Defendant, Moreno, is a third-party beneficiary.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2514611	SIGEL VS SIGEL	MOTION TO STRIKE DECLARATION OF HEATHER N PHILLIPS, ESQ

Tentative Ruling: Motion is Denied.

Defendant filed a motion to strike the Declaration of Heather N. Phillips, Esq. in support of Plaintiff's opposition to Defendant's Motion to Dismiss pursuant to Code of Civil Procedure sections 435 and 436.

On January 21, 2026, Defendant filed a Motion to Dismiss. On March 3, 2026, Plaintiff filed an opposition and Declaration of Heather Phillips in support of opposition to Motion to Dismiss. However, on March 6, 2026, Defendant filed a Notice of Withdrawal of Motion to Dismiss. The March 17, 2026 hearing on Motion to Dismiss was taken off calendar. Thus, this motion is MOOT. Moreover, the motion is fails to satisfy the required elements for a motion to strike under Code of Civil Procedure section 436 because section 436 is applicable only to a complaint, cross complaint, or pleading. (Code Civ. Proc., §§436, 435, subd. (a).) Defendant's motion to strike is not filed in response to a pleading or the Complaint.

5.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION TO EXPUNGE/DECLARE INVALID NOTICE OF PENDENCY OF ACTION (LIS PENDENS)

Tentative Ruling: Motion is denied. Request for Attorney's fees denied.
A real property claim is any cause of action which would affect title to, or right to possession of, specific real property, or the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.)

Plaintiff's Complaint seeks to partition by sale of the Property against all Defendants. (Compl., ¶¶21, 25-34.) The ownership is based on tenancy in common. (*Id.* at ¶¶16, 19.) Plaintiff is unsuccessful in coming to an agreement with Defendant on the disposition of the Property. (*Id.* at ¶20.) Such claim directly affects the title to and use of the Property. This constitutes a "real property claim" within the statutory definition under section 405.4.

Defendant contends the Complaint's causes of action principally seeks monetary relief and does not plead facts demonstrating Plaintiff's present entitlement to transfer or alteration of recorded title. (Jerry Decl., pg. 2: 11-14.) However, a lis pendens is proper if the pleading contains at least one qualifying real property claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 650.) The claim for partition is sufficient.

Probable Validity of the Claim - The lis pendens claimant bears the burden of establishing the "probable validity" of the real property claim by a preponderance of the evidence, that it is more likely than not that the plaintiff will obtain a judgment against the defendant on the claim. (Code Civ. Proc., §§ 405.3, 405.32; *J & A Mash & Barrel, LLC v. Superior Court (Tower Theater Properties)* (2022) 74 Cal.App.5th 1, 32-33.)

If conflicting evidence is presented, the judge must weigh the evidence in deciding whether plaintiff has sustained its burden. This "requires a minitrial on the merits for making a probable validity finding" rather than conducting a quasi-demurrer-like analysis. (*De Martini v. Superior Court (Gupta)* (2024) 98 Cal.App.5th 1269, 1279-1280.)
Defendant Austin Sigel submits a declaration stating he does not have any ownership interest in the Property and that his name was placed on title to the Property for non-ownership purposes, "including assistance related to financing, and not to reflect any true ownership interest."

Defendant Jerry A. Sigel testified that Plaintiff is on recorded title. (Jerry Decl., pg. 2:3.)

Plaintiff is the co-owner of the Property and the owner of an undivided one-half interest pursuant to a Grant Deed dated February 29, 2016. (Compl., ¶17; Ragonese Decl., ¶4, Exh. 1.) In reviewing the February 29, 2016 grant deed attached to Ragonese's declaration, it shows Plaintiff granted the Property to herself and Defendant Jerry A. Sigel as joint tenants. (Ragonese Decl., Exh. 1.) Jerry and Austin do not present evidence disputing Plaintiff as a title owner. Plaintiff has a statutory right to partition as a title owner. (Code Civ. Proc., § 872.710, subd. (b) ["partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver"].) There is no evidence that Plaintiff waived her right to partition Attorney's Fees – Expunge Lis Pendens.

The prevailing party on a motion to expunge is entitled to attorney's fees unless the other party acted with "substantial justification" or that an award would be unjust. (Code Civ. Proc., § 405.38.) Here, although Plaintiff is the prevailing party, Defendant acted in substantial justification given the action is affecting his residence, property rights, financing options, and ability to pursue a buyout. (Reply, ¶3; Jerry Decl., pg. 2:16-19.)

6.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2600233	SIGEL VS SIGEL	DEMURRER

Tentative Ruling: Request for Judicial Notice Granted. Special Demurrer for Uncertainty overruled. Special Demurrer (Plea in Abatement) is overruled. General Demurrer overruled on First and Second Causes of Action and sustained on the Third Cause of Action with 10 days leave to amend. Request for Costs denied.

Special Demurrer – Uncertainty - A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) Defendant's special demurrer for uncertainty disputes facts stated in the Complaint, and as such, it cannot be "so ambiguous or unintelligible the defendant cannot reasonably respond."

Special Demurrer – Statutory Plea in Abatement - A demurrer can be used only to challenge defects that appear on the face of the pleading under attack, or judicially noticeable matters outside the pleading. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)
A demurrer lies when another action is pending between the *same parties* on the *same cause of action.* (Code Civ. Proc., § 410.30, subd. (c); *Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 787 ("*Plant Insulation*").) The statutory plea in abatement rests on "narrow grounds" as it requires "absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (*Plant Insulation, supra,* 224 Cal.App.3d at 789, emphasis added.) "The 'underlying theory of the plea of another action pending is that the first action will normally be an ample remedy, and the second action…is therefore unnecessary and vexatious.'" (*Cal. Union Ins. Co. v. Trinity River Land Co.* (1980) 105 Cal.App.3d 104, 109.) "In determining whether the causes of action are the same for purposes of plea in abatement, the rule is that such a plea may

be maintained only where a judgment in the first action would be a complete bar to the second action." (*Plant Insulation, supra,* 224 Cal.App.3d at 787-788.) Although the existence of another substantially similar action will rarely appear on the face of a pleading, a demurrer on this ground may be based upon judicially noticed facts. (See *Branson v. Sun-Diamond Growers* (1994) 24 Cal.App.4th 327, 336 n.2; *Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-192.) There must be claim preclusion as issue preclusion is not sufficient. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) "[A]batement is not appropriate where the first action cannot afford the relief sought in the second." (*Lawyers Title Ins. Corp. v. Superior Court (Harrigfeld)* (1984) 151 Cal.App.3d 455, 459 ("*Lawyers Title")*.)

If the Court sustains a demurrer under Code of Civil Procedure section 430.10, subdivision (c), the proper order is not dismissal, but abatement or stay of further proceedings pending termination of the first action. (*Plant Insulation, supra,* at 788; *People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771 ("*Garamendi*").) An order of abatement issues as a matter of right, not as a matter of discretion. (*Id.* at 770-771.)

Another Action Pending - Here, there is another action pending in California relating to the Subject Property in Temecula. (RJN Exh. B; *Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 575.)

Same Parties - The parties must stand in the same relationship in both suits, as plaintiff or defendant. [See *Plant Insulation,* 224 Cal.App.3d at 789 ["absolute identities of parties" required in statutory plea in abatement].)

Here, Jerry Sigel is the Plaintiff in the instant lawsuit but is the defendant in the Partition Action. (Compl.; RJN, Exh. B.) Astrid Sigel is the Defendant in the instant lawsuit but is the Plaintiff in the Partition Action. (Compl.; RJN, Exh. B.) The Partition Action is also filed against defendants not named in Plaintiff's instant lawsuit, to wit: Ashley Sigel, Tax Collector of the County of Riverside, Capital One Financial Corporation, and Austin J. Sigel. Thus, the requisite "absolute identities of parties" is not present here, and abatement does not apply.

Same Cause of Action - Identical causes of action must be involved in both suits so that a judgment in the first action would be res judicata on the claim in the present lawsuit (claim preclusion). (*Bush, supra,* 10 Cal.App.4th at 1384.) The identity of the causes of action is determined by a comparison of the facts alleged in each complaint. To be the same "cause of action," each complaint must allege invasion of the same "primary right." (*Ibid.*) The fact that some of the same issues are involved so that a finding in either case would give rise to collateral estoppel (issue preclusion) is not enough if in fact different causes of action are involved. (*Ibid.*)

California follows the primary right theory that every judicial action must involve the following elements: a primary right possessed by the plaintiff, and a corresponding primary duty devolving upon the defendant; a delict or wrong done by the defendant which consisted in a breach of such primary right and duty; a remedial right in favor of the plaintiff, and a remedial duty resting on the defendant springing from this delict, and finally the remedy or relief itself. (*Bush, supra,* 10 Cal.App.4th at 1384.)

The primary right in this action is Plaintiff's right to remove Defendant from title and buy out Defendant's portion of the equity. The primary right in the Partition Act is Defendant's right to sell the property. Thus, the crux of both complaints involve the same property and the sale of Defendant's interest. Thus, it appears each complaint alleges invasion of the same "primary right." (*Bush, supra,* 10 Cal.App.4th at 1384.)

However, because "absolute identity of the parties" is not present, abatement does not apply.

General Demurrer

1st COA – Declaratory Relief - Declaratory relief is authorized pursuant to Code of Civil Procedure section 1060 – 1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (Code Civ. Proc., § 1060.) Declaratory relief has two elements a party must satisfy: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations." (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) "[T]he remedy is to be used in the interests of preventative justice, to declare rights rather than execute them." (*Id.*) "It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff." (*Safeway Stores, Inc. v. Royal Indemn. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, "[w]hile section 1060's language 'appears to allow for an extremely broad scope of an action for declaratory relief…In the context of a demurrer, the court will evaluate 'whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties… Section 1060 must be read together section 1061." (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal.App.4th 484, 489.) Code of Civil Procedure section 1061 provides that "[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances."

Here, the Complaint avers a proper subject of declaratory relief and an actual controversy involving justiciable questions relating to the parties' rights in the Property because it seeks a judicial determination that Plaintiff may encumber the property with a reverse mortgage and prevent a sale of the Property. (Compl., ¶¶10-11, 14-15.)

2nd COA – Equitable Accounting / Reimbursement - The elements of accounting are (1) existence of a relationship requiring accounting, such as fiduciary; and (2) some unliquidated and unascertained balance is owed. (*St. James Church of Christ Holiness v. Superior Court* (1955) 135 Cal.App.2d 352, 359; *Raymond v. Independent Growers, Inc.* (1955) 133 Cal.App.2d 154, 160; *Kritzer v. Lancaster* (1950) 96 Cal.App.2d 1, 7 ["a cause of action for accounting need only state facts showing the existence of the relationship which requires an accounting and the statement that some balance is due plaintiff"].)

The Complaint alleges the parties own an undivided 50% interest each in the Property. (Compl., ¶5.) Defendants seek to sell the Property. (*Id.* at ¶10.) Plaintiff seeks an accounting and equitable adjustment of the parties' interests to reflect Plaintiff's expenditures and contributions including the purchase of the 5-acre lot on which the Property sits, payment of delinquent taxes, construction costs, and adjustments relating to the November 2016 first trust deed including sums of that loan used by Defendant personally. (*Id.* at ¶17.) The Complaint sufficiently pleads a claim for equitable accounting and reimbursement.

3rd COA – Injunctive and Equitable Relief - Although strictly speaking, an injunction is a remedy rather than a cause of action, a cause of action is also commonly used in pleading as applying only to the relief sought, even though separately pleaded claims have origin in the same right or obligation. (*McDowell v. Watson* (1997) 59 Cal.App.4th 1155, 1159.) The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award." (*Brownsfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) To state a cause of action for an injunction, the complaint must plead facts that warrant injunctive relief. (*San Francisco v. Market S.R. Co.* (1950) 95 Cal.App.2d 648, 656.)
The Complaint alleges Plaintiff had the home built for the benefit of his children, has continuously resided at the Property since completion of construction, and now seeks injunctive relief to prevent the sale of the Property. (Compl., ¶¶6.) Plaintiff seeks to remain in the home. (*Id.* at ¶11.) Where the Complaint falls short is it fails to allege irreparable injury, if any. However, this appears curable. Thus, the Court willd SUSTAIN the demurrer with leave to amend.

7.

CASE #	CASE NAME	HEARING NAME
CVME2600233	SIGEL VS SIGEL	MOTION TO STAY PARTITION

Tentative Ruling: Motion is denied. Code of Civil Procedure section 872.710, subdivision (b), states that partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver.

Here, Plaintiff does not dispute Defendant's ownership in the Property and is prepared to compensate Defendant for her share of the property's equity. (Mot., pg. 2:23-25.) There is no evidence that Defendant waived her right to partition.

Plaintiff, however, fails to provide any legal authority for the relief sought. If anything, Plaintiff cites to section 872.710 acknowledging Defendant's right to seek partition of property. Plaintiff argues partition proceedings are equitable in nature and courts retain authority to structure relief in a manner that protects the interests of the parties. However, again, Plaintiff does not provide legal authority for the foregoing argument. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (See *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.) "[E]very brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration." (*Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050.)

8.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2600233	SIGEL VS SIGEL	MOTION TO CONSOLIDATE OR RELATE CASES

Tentative Ruling: Motion to consolidate is granted.